

TERRY TINSLEY,

Index No:

Petitioner,

-against-

NOTICE OF PETITION

THE CITY OF NEW YORK,

Respondent.

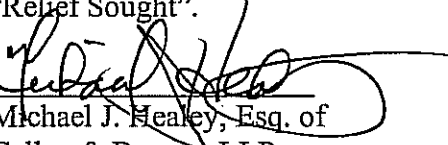
PETITIONER: CALLAN & BYRNES - attorneys for the petitioner, Terry Tinsley

RELIEF SOUGHT: The petitioner prays for an Order:

- (1) Requiring the City of New York to divulge the names, badge numbers, and last known addresses of the two New York City Fire Department Emergency Medical Service employees who encountered petitioner at 90th Street and Third Avenue in Manhattan, New York between 11:00 A.M. to Noon on June 19, 2012, and then transported him to Metropolitan Hospital Center; and
- (2) Requiring the City of New York to divulge the names, shield numbers and precincts of the two plain clothes detectives and two uniformed police officers who encountered the petitioner on 90th Street and Third Avenue in Manhattan New York between 11:00 A.M. to Noon on June 19, 2012;

SUPPORTING PAPERS The petition of Michael Healey dated April 9, 2013 and the exhibits attached hereto.

RETURN DATE, PLACE & TIME: Callan & Byrnes, the attorneys for the plaintiff in the above captioned action will move this Court at the New York State Supreme 60 Centre Street New York, New York before the motion submission part room 130 in May 3, 2013 at 9:30 A.M. or as soon thereafter as counsel can be heard for the relief stated herein under "Relief Sought".

By: 
Michael J. Healey, Esq. of
Callan & Byrnes, LLP
Attorneys for plaintiff
Sarah Lesane
225 Broadway 41st floor
New York, N.Y. 10007
(212) 233 8070

Hand Delivered to: Corporation Counsel as Attorneys for respondent the City of New York
at 100 Church Street 4th Floor N.Y. N.Y. 10007 (12) 788-0303

PLEASE TAKE FURTHER NOTICE, that answering affidavits, if any, are to be served upon the undersigned within seven (7) days prior to the return date of the within application.

Dated: New York, New York
April 9, 2013

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THE CITY OF NEW YORK,

Respondent.

MICHAEL HEALEY, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the following to be true under the penalties of perjury:

1. I am an associate with the firm of Callan & Byrnes, attorneys for the petitioner herein, and as such, thoroughly familiar with the case at bar.
2. On 10:45 A.M., June 19, 2012, Terry Tinsley, walked into the Chase Manhattan bank branch at 90th Street and 3rd Avenue in Manhattan and told the bank manager that a teller failed to deposit \$200 of a \$400 deposit he made their on June 18, 2012. Mr. Tinsley was then told not to return to the bank without the police.
3. Taking this advice literally, Mr. Tinsley immediately called 911 on the sidewalk public pay phone outside the bank and stated that the bank had robbed him of \$200. A copy of the sprint report reflecting his phone call is attached hereto as Exhibit 1.
4. When the police arrived however, far from helping Mr. Tinsley recover his missing \$200, they threatened him, grabbed him, physically assaulted him, threw him face first onto a gurney, injured his right shoulder and then forced him into an ambulance and stuck him in the locked psych ward of Metropolitan Hospital Center where he remained imprisoned until June 21, 2012.
5. Mr. Tinsley said that there were two plain clothes detectives and two uniformed police who encountered him. Of the four, one bears the last name (Alton) and one bears the last name (Heize) phonetically. They are believed to be from the 19th precinct or ESU.

6 The two EMS workers who Mr. Tinsley believes arrived from Lennox Hill Hospital in an ambulance failed to behave any better than the police - grabbing a stunned and frightened Mr. Tinsley, wresting him, and strapping him face first onto a gurney which nearly

smothered him, wrenching his right shoulder, strapping him so tight that his circulation was cut off - and delivering him to the locked psych ward of Metropolitan Hospital Center. Mr. Tinsley described the EMT(s) as being one male and one female.

7. Mr. Tinsley was imprisoned in that psych unit for over two days. No criminal charges of any kind were ever filed against Mr. Tinsley because he did nothing wrong.

8. Mr. Tinsley's travails are recounted in his affidavit attached hereto as Exhibit 2 and reproduced below as follows:

Terry Tinsley, being duly sworn, hereby swears to the truth of the following:

1. I am over the age of 18 and reside in the County and State of New York.
2. On June 18, 2012, while at J.P. Morgan Chase bank at 90th Street and Third Avenue in Manhattan, I gave a teller \$400 in cash to deposit. The teller, a man, gave me a receipt. I am certain that the transaction was videotaped.
3. When I looked at the receipt later that night, I noticed that it was only for \$200.
4. The next day, June 19, 2012, I went back to the bank and spoke with a man I believed to be the bank manager, telling him that the teller had failed to deposit \$200 of the \$400 cash I handed him the day before.
5. The bank manager told me not to come back without the police.
6. After hearing this, I went outside and called 911 (the police) from a public pay phone and told them my that my bank robbed me of \$200 and asked them to please help me.
7. The police came, but instead of investigating what happened to the missing \$200, they threatened to punch me, handcuffed me, grabbed me, wrenched my right arm and shoulder, and threw me face down onto a gurney from an ambulance that arrived from Lenox Hill Hospital. With two E.M.S. workers the police forced me onto the gurney and into the ambulance.
8. Two of the police were plain clothes detectives and two were uniformed officers. The two uniformed officers arrived in a marked police car. The detectives were already at the scene before the uniformed officers arrived. All fours, I believe, were from the 19th Precinct.
9. The two E.M.S. workers from Lenox Hill Hospital, one male, one female, came out of the ambulance. grabbed me and strapped me face first onto a gurney so tight that the circulation to my legs was cut off. After

being put me in the ambulance, I was deposited in the locked psych ward unit at Metropolitan Hospital Center where I was imprisoned for until June 21, 2012. .

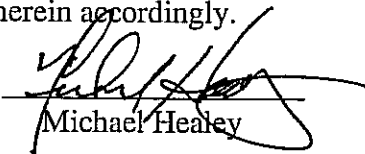
10. Without even giving me a chance to speak, the police and E.M.S. workers mentioned above, treated me like a sub-human and deposited me in the psych ward like a bag of human garbage. They showed me no courtesy, no professionalism and above all, no respect. I worked hard my entire life. As a middle aged hard working black man, I did not deserve what happened to me. .
11. No criminal charges were ever filed against me of course because I did nothing wrong. The videotape of my actions in the bank on June 19, 2012 will bear out this fact.
12. I want to sue the police officers and EMS workers that mistreated me. Merely inquiring about the whereabouts of a missing deposit, is not a crime. What happened to me was.
13. Please provide me attorneys the information they are requesting.

10. The police and EMS cannot grab someone and lock him in a psych ward simply because he dared tell a bank manager at Chase that a teller shorted him \$200 the day before.

11. There is no reason why the City of New York cannot, given its considerable resources, provide the petitioner with the names, badges/shield numbers of the police and EMS workers who mistreated him allowing him to frame a complaint against them.

12. There have been no prior requests made for the relief sought herein.

13. It is requested that the Court grant the relief sought herein accordingly.


Michael Healey

Dated: New York, New York
April 9, 2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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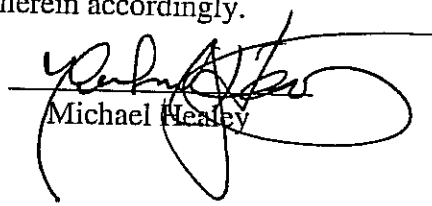
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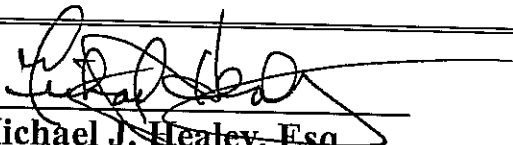
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Michael J. Healey, Esq.
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Attorneys for Petitioner
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